

STATE OF NEW YORK

6736--A

2025-2026 Regular Sessions

IN SENATE

March 21, 2025

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to requiring Medicaid to cover a wearable medical device to treat certain forms of cancer

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 365-a of the social services law
2 is amended by adding a new paragraph (oo) to read as follows:

3 (oo) a wearable medical device that uses low-intensity, alternating
4 electric fields delivered directly to the tumor site to treat glioblas-
5 toma and other cancers as recommended by medical and scientific
6 evidence, including, but not limited to:

7 (i) labeled indications for a medical device approved or cleared by
8 the federal food and drug administration;

9 (ii) centers for medicare and Medicaid services national coverage
10 determinations and medicare administrative contractor local coverage
11 determinations; and

12 (iii) nationally recognized clinical practice guidelines such as, but
13 not limited to, those of the national comprehensive cancer network or
14 the American society of clinical oncology.

15 § 2. This act shall take effect on the first of April next succeeding
16 the date on which it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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